

The order allowing Defendant's attorney to withdraw was made after due notice was given to Defendant. The motion and the order were drawn on the mandated Judicial Council forms, which are designed to be easily understood by non-attorney litigants. The order thus gave Defendant the following "NOTICE TO CLIENT" (set off from the rest of the form in a text box):

"Your present attorney will no longer be representing you. You may not in most cases represent yourself if you are one of the parties on the following list: ...A corporation.... If you are one of these parties, YOU SHOULD IMMEDIATELY SEEK LEGAL ADVICE REGARDING LEGAL REPRESENTATION. Failure to retain an attorney may lead to an order striking the pleadings or to the entry of a default judgment."

(Order filed March 4, 2026, at Page 2, Item 10 (bolded and upper case text in the original).)

Thus, Defendant was notified: 1) of its attorney's withdrawal; 2) that as an entity it could not represent itself, and thus it needed to immediately seek other counsel; and 3) that the consequences of not doing so might be "an order striking the pleadings or...the entry of a default judgment." (March 4, 2026, Order, p. 2.) Defendant has had over four months to retain other counsel, and Defendant has not done so. Defendant has not filed any response to this motion. The court continues the matter for one final period to allow Defendant to cure.

The court notes that Plaintiff seeks to strike the entirety of Defendant's answer. Sylvia Donaldson ("Donaldson") and James Bond ("Bond") filed answers concurrently with Defendant. Donaldson and Bond, being individuals, may maintain their answers in propria persona. Thus, the motion to strike is denied to the extent it seeks to affect defendants Donaldson and Bond.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 4, 2026.

(36)

Tentative Ruling

Re: ***Fresno Oxygen and Welding Suppliers, Inc. v. The Body Building, Inc.***
Superior Court Case No. 24CECG02709

Hearing Date: August 5, 2026 (Dept. 403)

Motion: by Plaintiff to Enforce Settlement

Tentative Ruling:

To grant the motion to enforce settlement. To grant attorney fees for the enforcement of the settlement agreement in the total amount of \$1,400. (Code Civ. Proc., § 664.6.) Plaintiff shall submit a proposed judgment consistent with the court's order within 10 days of service of the minute order.

**If oral argument is timely requested, it will be entertained on
Thursday, August 6, 2026, at 3:30 p.m. in Department 403.**

Explanation:

Code of Civil Procedure, section 664.6 provides in relevant part:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement.

(Code Civ. Proc., § 664.6, subd. (a).)

Here, the parties have a writing, signed by them outside the presence of the court—the Settlement Agreement. The writing reflects that this court would retain jurisdiction under section 664.6 to enforce the writing. (Barnes Decl., ¶ 4e, and Ex. 1 thereto.) Though a Notice of Conditional Settlement was filed, the matter remains open and has not been dismissed.

The agreement contemplated the settlement of the action for the amount of \$7,500 with payments of \$2,500 to be made on the 5th of January, February, and March 2026. (Barnes Decl., Ex. 1.) Plaintiff acknowledges that partial performance occurred as to the agreement. Defendant made one payment of \$2,500 pursuant to the agreement on January 5, 2026, and has not made payments since. (*Ibid.*) The court calculates the remaining balance to be \$5,000. Plaintiff has presented evidence of defendant's noncompliance with the terms of the agreement. (Barnes Decl., ¶¶ 5-6.) No opposition was filed.

Based on the above, the court finds a valid written signed settlement agreement outside of the presence of the court, and judgment will be entered in accordance with the terms of the written settlement agreement.

Pursuant to paragraph nine of the agreement, plaintiff is entitled to attorney fees incurred in bringing this motion to enforce the settlement agreement. The court intends to grant the request for \$1,400 for 3.5 hours of work billed at Mr. Slater's rate of \$400 per hour. Additional fees may be awarded if a hearing is necessary.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 4, 2026.
(Judge's initials) (Date)